

The Ozone Depleting Substances (Regulation And Control) Rules, 2000

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[The Ozone Depleting Substances \(Regulation And Control\) Rules, 2000](#)

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[10.](#)

[/537](#)

[In exercise of the powers conferred by sections 6, 8 and 25 of the Environment \(Protection\) Act, 1986, the Central Government hereby makes the following rules for regulating ozone depleting substances, namely:-](#)

[1.](#)

[Short title and commencement](#)

.(1) These rules may be called The Ozone Depleting Substances (Regulation and Control) Rules, 2000.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions

.-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Environment (Protection) Act, 1986 (29 of 1986

);

(b)

"authority" means an authority mentioned in columns (4) and (6) of Schedule V;

(c)

"base level" means the quantity of ozone depleting substance produced or consumed, as the case may be, in the year or average of the years listed in column (3) of Schedule II and Schedule III;

(d)

"consumption" with respect to any ozone depleting substance means the amount of that substance produced in India in addition to the amount imported, less the amount exported [and the amount used as feedstock substance which is used entirely in the manufacture of other chemicals, with negligible emissions, if any]

[Inserted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

;

(e)

"calculated level of production, sale, import or export", as the case may be, means level determined by multiplying quantity of the ozone depleting substance by its ozone depleting potential specified in column (5) of Schedule I;

(f)

"calculated level of consumption" shall be determined by adding together, calculated levels of production and imports and subtracting calculated level of exports;

(g)

"Group" means collection of one or more ozone depleting substances as specified in column (4) of Schedule I;

(h)

"manufacture" in relation to any ozone depleting substance includes-

(i)

any process or part of a process for making, altering, finishing, packing, labelling, blending or otherwise [treating of any ozone depleting substance]

[Substituted by S.O. 996(E), dated 27.8.2003 (w.e.f. 29.8.2003).]

with a view to sell, distribute or use but does not include the repacking or breaking up of any ozone depleting substance in the ordinary course of retail business; and

(ii)

any process in which a preparation containing ozone depleting substance is formulated;

(i)

"ozone depleting substance" means the ozone depleting substances specified in column (2) of Schedule I, whether existing by itself or in a mixture, excluding any such substance or mixture (blend) which is in a manufactured product other than a container used for the transportation or storage of such substance;

(j)

"parties" means, unless the text otherwise indicates, parties to the protocol [and parties to the amendments thereof]

[Inserted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

;

(k)

"pre-shipment applications" are those treatments applied directly preceding and in relation to export, to meet the phytosanitary or sanitary requirements of the importing country or existing phytosanitary or sanitary requirements of the exporting country;

(l)

"production" in relation to any ozone depleting substance means the manufacture of an ozone depleting substance from any raw material or feedstock chemicals, but does not include-

(i)

the manufacture of a substance that is used and entirely consumed (except for trace quantity) in the manufacture of other chemicals; or

(ii)

quantities which are produced incidentally in the manufacture of other chemical substances; or

(iii)

quantities which are recycled or reused; or

(iv)

quantities which are destroyed by technologies to be specified by the Central Government;

(m)

"protocol" means the Montreal Protocol on Substances that Deplete the Ozone Layer, adopted on 16th September, 1987;

(n)

"quarantine applications", with respect to Group VIII of Schedule I ozone depleting substance, are treatments to prevent the introduction, establishment and or spread of quarantine pests (including diseases), or to ensure their control as specified by the Central Government;

(o)

"recovery" means collection and storage of ozone depleting substances from machinery, equipment, or containment vessel during servicing or prior to disposal;

(p)

"reclamation" means reprocessing and upgrading of a recovered ozone depleting substance through such methods as filtering, drying, distillation and, or chemical treatment in order to restore the substance to a specified standard of performance;

(q)

"Schedule" means a Schedule annexed to these rules.

3.

Regulation of production and consumption of ozone depleting substances

-(1) No person shall produce or cause to produce any ozone depleting substance after the date specified in column (5) of Schedule V unless he is registered with the authority specified in column (4) of that Schedule:

Provided that for the twelve month period commencing on the date specified in column (6) of Schedule II, and in each twelve month period thereafter, no person shall produce or cause to be produced any group of ozone depleting substances in excess of the corresponding percentage of his calculated base level of production specified in column (4) of that Schedule excluding the substances which is for the use of as feedstock in the manufacture of other chemicals, with negligible emissions, if any:

Provided further that calculated level of consumption of such substances in India shall, as a percentage of calculated level of consumption in base years does not exceed the number specified in column (5) of Schedule II.

(2)

No person shall produce or cause to produce ozone depleting substances specified as Group I and Group III in column (4) of Schedule I during the period from 1st August, 2000 to 1st January, 2010 in excess of the quantity specified in column (4) of Schedule III and the calculated level of consumption of such substances in India shall, as a percentage of calculated level of consumption in base year does not exceed the number specified in column (5) of that Schedule.

(3)

[A person having received financial assistance from the Multilateral Fund in accordance with articles 10 and 10-A of the protocol to which the Central Government is a party for gradual reduction of production and consumption of ozone depleting substances-

(i)

specified as Group I and Group III in column (4) of Schedule I shall, limit the production of ozone depleting substances as specified in column (4) of Schedule III;

(ii)

specified as Group IV in column (4) of Schedule I shall limit the production and consumption of ozone depleting substance specified in columns (4) and (5) of Schedule II;

(iii)

specified as Group I and Group II in column (4) of Schedule I shall limit the consumption of ozone depleting substance as specified in column (5) of Schedule III, in each year from 1st August, 2000 to 1st January, 2010 to quantities specified in column (4) for each year given in column (6) of Schedule III as per the agreement approved by the Executive Committee of the Multilateral Fund.

(4)

In order to implement the agreement, referred to in sub-rule (3), the Central Government shall introduce implementation modalities, such as quota system for production and consumption of chlorofluorocarbons and carbon tetrachloride for non-feedstock use and verification system for feedstock application, and non-compliance with such modalities shall result in consequential penalties laid out in the agreements.]

[Substituted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

4.

Prohibition on export to or import from countries not specified in Schedule VI

.-No person shall import or cause to import from or export or cause to export to any country not specified in Schedule VI any ozone depleting substance after the commencement of these rules.

5.

Ozone depleting substances are to be exported to or imported from countries specified in Schedule VI under a licence

.- (1) No person shall import or cause to import from or export or cause to export to, any country specified in Schedule VI, any ozone depleting substance unless he obtains a licence issued by the authority.

(2)

No licence shall be issued under sub-rule (1) unless the said authority is satisfied that the grant of licence shall not cause calculated level of consumption of that group of ozone depleting substances [* * *]

[Certain words omitted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

in the relevant twelve month period, as a percentage of corresponding calculated consumption in base years, to exceed the number specified in column (5) of Schedule II.

[* * *]

[Sub-Rule (3) omitted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

(4)

The calculated base level of consumption and the calculated base level of production for India as a whole for each group of ozone depleting substances shall be notified by the Central Government.

6.

Regulation of the sale of ozone depleting substances

.- (1) No person shall either himself or by any other person on his behalf or enterprise sell, stock or exhibit for sale or distribute any ozone depleting substance after the date specified in column (5) of Schedule V unless he is registered with the authority specified in column (4) of that Schedule:

Provided that no person or enterprise shall sell ozone depleting substances specified in column (3) of Schedule IV for activities specified in column (2) of that Schedule unless the person engaged in that activity has got himself registered with the authority and has given a declaration in accordance with these rules and the person selling ozone depleting substances has verified particulars of the registration given in the declaration with the certificate of registration as per procedure specified in Part II of Schedule XII:

Provided further that after the date specified in column (4) of Schedule IV, no person or enterprise shall sell, stock, distribute or exhibit or cause to be sold, stocked, distributed or exhibited ozone depleting substances specified in column (3) for activities specified in column (2) of that Schedule.

(2)

No person shall either himself or by any person on his behalf, or enterprise sell, stock or exhibit for sale or distribute any ozone depleting substance to any person or enterprise who has informed the Central Government that he or that enterprise shall not use the specified ozone depleting substances in manufacturing or other activities after the date specified by such person or as the case may be, the enterprise.

(3)

The Central Government shall notify the list of persons, ozone depleting substances and dates informed to it under sub-rule (2).

7.

Regulation on the purchase of ozone depleting substances

.-No person shall either himself or by any person on his behalf or enterprise, purchase ozone depleting substances specified in column (3) of Schedule IV from any person for making stock or for using such ozone depleting substances for activities specified in column (2) of that Schedule unless he has given the declaration specified in Part I of Schedule XII to the seller of such substances within the time period specified in serial number 4 of column (5) of Schedule V.

8.

Regulation on the use of ozone depleting substance

.- (1) No person or enterprise shall engage in any activity specified in column (2) of Schedule IV that uses ozone depleting substances specified in column (3) of that Schedule after the date specified in column (5) of Schedule V unless he is registered with the authority specified in column (4) of that Schedule.

(2)

No person shall engage in any activity specified in column (2) of Schedule IV using ozone depleting substances specified in column (3) of that Schedule after the date specified in column (5) of Schedule V unless the products are labelled to indicate the ozone depleting substance they contain.

(3)

No person shall engage in any activity specified in column (2) of Schedule IV using ozone depleting substances specified in column (3) after the date specified in column (4) of that Schedule.

(4)

No person shall engage in any activity specified in column (2) of Schedule IV without using label indicating absence of use of ozone depleting substance mentioned in column (3) after the date specified in column (4) of that Schedule.

(5)

A person, having received financial and technical assistance from the Multilateral Fund in accordance with the articles 10 and 10-A of the Montreal Protocol on Substances that Deplete the Ozone Layer, to which the Central Government is a party for phasing out of ozone depleting substances specified in column (2) of Schedule II used in activities specified in column (2) of Schedule IV, either himself or by any person on his behalf or through any enterprise, shall not engage in such activity as specified in column (2) of Schedule IV using ozone depleting substances specified in column (3) of the Schedule, after the date of completion of the conversion work or signing of the Handing Over Protocol, or the submission of the completion report to change from ozone depleting substance technology to non-ozone depleting substance technology and the said date be registered with the authority specified in column (4) of the Schedule V.

(6)

Any person or enterprise having received, financial assistance from the Multilateral Fund in accordance with the articles 10 and 10-A of the Montreal Protocol on Substances that Deplete the Ozone Layer shall submit an affidavit or declaration with the authority specified in column (4) of Schedule V stating that replaced equipment, resulted from completion of conversion process from ozone depleting substance technology to non-ozone depleting substance technology, have been destroyed, dismantled, rendered unusable and that no ozone depleting substance should be used after the date of the completion of project and the said date be registered with the authority specified in the column (4) of the Schedule V.

9.

Prohibition on new investments with ozone depleting substances

.- (1) No person shall establish or expand or cause to establish or expand any manufacturing facility for production of any ozone depleting substance after the date specified in column (7) of Schedule II and III.

(2)

No person shall establish or expand or cause to establish or expand any manufacturing facility, with a view to manufacturing products which contain, or are made with, any ozone depleting substance after the date specified in column (8) of Schedule II and III.

[(2-A) The provisions of sub-rules (1) and (2) of this rule shall not apply to any ozone depleting substance which is produced for the use of as feedstock in the manufacturing of other chemicals, with negligible emissions, if any.]

[Inserted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

(3)

A person having received financial and technical assistance from the Multilateral Fund in accordance with the articles 10 and 10-A of the Montreal Protocol on Substances that Deplete the Ozone Layer for phasing out of ozone depleting substances specified in column (2) of Schedule II used in activities specified in column (2) of Schedule IV to which the Central Government is a party, shall not establish or expand or cause to establish or expand the manufacturing facility for production of any ozone depleting substance or with a view to manufacturing products which contain or are made with any ozone depleting substances after the approval of the project for conversion and date of completion of the conversion work from the ozone depleting substance technology to non-ozone depleting substance technology.

10. Regulation of import, export and sale of products made with or containing ozone depleting substances

-(1) No person shall import or cause to import any product specified in column (2) of Schedule VII which are made with or contain ozone depleting substances specified in column (3) after the date specified in column (4) of that Schedule unless he obtains a license issued by the authority:

[Provided that no person shall import or cause to import any product specified in column (2) of Schedule VII which are made with or contain ozone depleting substances as listed in Group I, Group II and Group III in Schedule I from the date of commencement of the Ozone Depleting Substances (Regulation and Control) Amendment Rules, 2007:

Provided further that such products]

[Substituted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

which do not contain such ozone depleting substances shall carry a label to that effect before its import is allowed after the date specified in column 4 of Schedule VII.

(2)

No person or enterprise shall export or cause to export any product specified in column (2) of Schedule VII unless such product carries a label specifying whether or not the product has been made with or contains, as the case may be, ozone depleting substances specified in column (3) of that Schedule, after the date specified in column (5) of that Schedule.

(3)

No person shall either himself or by any other person or enterprise on his behalf sell, stock or exhibit for sale or distribute any product resulting out of activities, or provide services, specified in column (2) of Schedule IV using ozone depleting substances specified in column (3) after the date specified in column (4) of that Schedule.

11.

Regulation on reclamation and destruction of ozone depleting substances

-(1) No person shall reclaim or cause to reclaim any ozone depleting substance after the date specified in column (5) of Schedule V unless he has registered with the authority specified in column (4) of that Schedule.

(2)

No person shall destroy or cause to destroy any ozone depleting substance after the date specified in column (5) of Schedule V unless he has registered with the authority specified in column (4) of that Schedule.

12.

Regulation on manufacture, import and export of compressors

-(1) No person shall manufacture, import or export compressors after the date specified in column (5) of Schedule V unless he has registered with the authority specified in column (4) of that Schedule.

13.

Procedure for registration, cancellation of registration and appeal against such orders

-(1) The procedure for registration and conditions of registration under various provisions of these rules shall be as specified in Schedule IX.

(2)

The registering authority shall not register if he is not satisfied that the procedure for registration or conditions of registration are fulfilled.

(3)

The registering authority shall cancel the registration if he is satisfied that condition(s) of registration have been violated.

(4)

The registering authority shall give the concerned person an opportunity of being heard before passing orders under

sub-rules (2) and (3) and the orders shall be made in writing.

(5)

As appeal against an order of the registering authority shall lie with the authority specified in column (6) of Schedule V within thirty days of communication of such order.

[* * *]

[Sub-Rr. (6) and (7) omitted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

[* * *]

[Sub-Rr. (6) and (7) omitted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

(8)

[Every application for registration or renewal of registration under these rules shall be disposed of within sixty days from the date of receipt of such complete application by the authority specified in column (4) of Schedule V.

(9)

The concerned registering authority specified in column (4) of Schedule V shall decide the issue of cancellation of any registration granted under these rules within sixty days from the date of service of the show cause notice given by him to the registration holder.]

[Inserted by S.O. 996(E), dated 27.8.2003 (w.e.f. 29.8.2003).]

14.

Monitoring and reporting requirements

-(1) Every person who produces, imports, exports or sells any ozone depleting substance shall maintain records and file reports in the manner specified in Part I of Schedule X.

(2)

Every person stocking or purchasing any ozone depleting substance for use in activities specified in column (2) of Schedule IV shall maintain records and file reports in the manner specified in Part II of Schedule X.

(3)

Every person who has received technical or financial assistance from any international organisation or any financial assistance, which includes concession or exemption from payment of duties, from the Central Government, shall maintain records and file reports in the manner specified in Part III of Schedule X and the list of such persons shall be notified by the Central Government.

(4)

Every person who has facility to reclaim an ozone depleting substance shall maintain records and file reports in the manner specified in Part IV of Schedule X.

(5)

Every person who has facility to destroy any ozone depleting substance shall maintain records and file reports in the manner specified in Part V of Schedule X.

(6)

Every person who manufactures, imports, exports or sells compressors shall maintain records and file reports in the manner specified in Part VI of Schedule X.

(7)

The records maintained in accordance with the above sub-rules shall be made available for inspection as specified in Part VII of Schedule X.

15.

Exemption

-.Nothing contained in these rules shall apply to applications or circumstances specified in Schedule VIII.

I

[See rule 2(e), (n), 3(2) and (3), 5(3)]

LIST OF OZONE DEPLETING SUBSTANCE

S. No.

Name of Ozone Depleting Substance

Chemical Composition of Ozone Depleting Substance

Group

Ozone Depleting Potential

(1)

(2)

(3)

(4)

(5)

1.

CFC-11

Trichlorofluoromethane(CFCI₃)

I

1.0

2.

CFC-12

Dichlorodifluoromethane (CF₂Cl₂)

I

1.0

3.

CFC-113

Trichlorotrifluoroethane(C₂F₃Cl₃)

I

0.8

4.

CFC-114

Dichlorotetrafluoroethane(C₂F₄Cl₂)

I

1.0

5.

CFC-115

Chloropentafluoroethane(C₂F₅Cl)

I

0.6

6.

Halon-1211

Bromochlorodifluoromethane(CF₂BrCl)

II

3.0

7.

Halon-1301

Bromotrifluoromethane(CF₃Br)

II

10.0

8.

Halon-2402

Dibromotetrafluoroethane(C₂F₄Br₂)

II

6.0

9.

CFC-13

Chlorotrifluoromethane(CF₃Cl)

III

1.0

10.

CFC-111

Pentachlorofluoroethane(C₂FCI₅)

III

1.0

11.

CFC-112

Tetrachlorodifluoroethane(C₂F₂CI₄)

III

1.0

12.

CFC-211

Heptachlorofluoropropane(C₃FCI₇)

III

1.0

13.

CFC-212

Hexachlorodifluoropropane(C₃F₂CI₆)

III

1.0

14.

CFC-213

Pentachlorotrifluoropropane(C₃F₃CI₅)

III

1.0

15.

CFC-214

Tetrachlorotetrafluoropropane(C₃F₄CI₄)

III

1.0

16.

CFC-215

Trichloropentafluoropropane(C₃F₅CI₃)

III

1.0

17.

CFC-216

Dichlorohexafluoropropane(C₃F₆CI₂)

III

1.0

18.

CFC-217

Chloroheptafluoropropane(C₃F₇CI)

III

1.0

19.

Carbon tetrachloride

Tetrachloromethane(CCI₄)

IV

1.1

20.

Methyl chloroform

1, 1, 1-Trichloroethane (C₂H₃Cl₃)

V

0.1

21.

HCFC-21

Dichlorofluoromethane(CHFCl₂)

VI

0.04

22.

HCFC-22

[Chlorodifluoromethane (CHF₂Cl)]

[Substituted by S.O. 1561(E), dated 18-9-2007 (w.e.f. 19-9-2007).]

VI

0.055

23.

HCFC-31

Chlorofluoromethane(CH₂FCI)

VI

0.02

24.

HCFC-121

Tetrachlorodifluoroethane(C₂HF₂Cl₄)

VI

0.04

25.

HCFC-122

Trichlorodifluoroethane(C₂HF₂Cl₃)

VI

0.08

26.

HCFC-123

2, 2-dichloro-1, 1, 1-trifluoroethane

(C₂HF₃Cl₂)

VI

0.06

27.

HCFC-123a

1.2-dichloro-1, 1, 2-trifluoroethane

(CHCl₂CF₃)

VI

0.02

28.

HCFC-124

2-chloro-1, 1, 1, 2-trifluoroethane

(C₂HF₄Cl)

VI

0.04

29.

HCFC-124a

2-chloro-1, 1, 2, 2-trifluoroethane

(CHFClCF₃)

VI
0.022
30.
HCFC-131
Trichlorofluoroethane(C₂H₂FCI₃)
VI
0.05
31.
HCFC-132
Dichlorodifluoroethane(C₂H₂F₂CI₂)
VI
0.05
32.
HCFC-133
Chlorotrifluoroethane(C₂H₃F₃CI)
VI
0.06
33.
HCFC-141
Dichlorofluoroethane(C₂H₃FCI₂)
VI
0.07
34.
HCFC-141b
1, 1-dichloro-1-fluoroethane (CH₃CFCl₂)
VI
0.11
35.
HCFC-142
Chlorodifluoroethane(C₂H₃F₂CI)
VI
0.07
36.
HCFC-142b
1-chloro-1, 1-difluoroethane (CH₃CF₂CI)
VI
0.065
37.
HCFC-151
Chlorofluoroethane(C₂H₄FCI)
VI
0.005
38.
HCFC-221
Hexachlorofluoropropane(C₃HFCI₆)
VI
0.07
39.
HCFC-222
Pentachlorodifluoropropane(C₃HF₂CI₅)
VI

0.09

40.

HCFC-223

Tetrachlorotrifluoropropane(C₃HF₃Cl₄)

VI

0.08

41.

HCFC-224

Trichlorotetrafluoropropane(C₃HF₄Cl₃)

VI

0.09

42.

HCFC-225

Dichloropentafluoropropane(C₃HF₅Cl₂)

VI

0.07

43.

HCFC-225ca

1, 3-dichloro-1,2,

2,3,3-pentafluoropropane (CF₃CF₂CHCl₂)

VI

0.025

44.

HCFC-225cb

1-3-dichloro-1,2,2,3,3-pentafluoropropane

(CF₂ClCF₂CHClF)

VI

0.033

45.

HCFC-226

Chlorohexafluoropropane(C₃HF₆Cl)

VI

0.10

46.

HCFC-231

Pentachlorofluoropropane(C₃H₂FCl₅)

VI

0.09

47.

HCFC-232

Tetrachlorodifluoropropane(C₃H₂F₂Cl₄)

VI

0.10

48.

HCFC-233

Trichlorotrifluoropropane(C₃H₂F₃Cl₃)

VI

0.23

49.

HCFC-234

Dichlorotetrafluoropropane(C₃H₂F₄Cl₂)

VI
0.28
50.
HCFC-235
Chloropentafluoropropane(C₃H₂F₅Cl)
VI
0.52
51.
HCFC-241
Tetrachlorofluoropropane(C₃H₃FCl₄)
VI
0.09
52.
HCFC-242
Trichlorodifluoropropane(C₃H₃F₂Cl₃)
VI
0.13
53.
HCFC-243
Dichlorotrifluoropropane(C₃H₃F₃Cl₂)
VI
0.12
54.
HCFC-244
Chlorotetrafluoropropane(C₃H₃F₄Cl)
VI
0.14
55.
HCFC-251
Trichlorofluoropropane(C₃H₄FCl₃)
VI
0.01
56.
HCFC-252
Dichlorodifluoropropane(C₃H₄F₂Cl₂)
VI
0.04
57.
HCFC-253
Chlorotrifluoropropane(C₃H₄F₃Cl)
VI
0.03
58.
HCFC-261
Dichlorofluoropropane(C₃H₅FCl₂)
VI
0.02
59.
HCFC-262
Chlorodifluoropropane(C₃H₅F₂Cl)
VI

0.02
60.
HCFC-271
Chlorofluoropropane(C₃H₆FCI)
VI
0.03
61.
BFC-21B2
Dibromofluoromethane(CHFBr₂)
VII
1.00
62.
HBFC-22B1
Bromodifluoromethane(CHF₂Br)
VII
0.74
63.
Bromofluoromethane(CH₂FBr)
VII
0.73
64.
Tetrabromofluoroethane(C₂HFBr₄)
VII
0.8
65.
Tribromodifluoroethane(C₂HF₂Br₃)
VII
1.8
66.
HBFC-123B2
HBFC-123aB2
Dibromotrifluoroethane(C₂HF₃Br₂)
VII
1.6
67.
HBFC-124B1
Bromotetrafluoroethane(C₂HF₄Br)
VII
1.2
68.
Tribromofluoroethane(C₂H₂FBr₃)
VII
1.1
69.
Dibromodifluoroethane(C₂H₂F₂Br₂)
VII
1.5
70.
Bromotrifluoroethane(C₂H₂F₃Br)
VII
1.6

71.
Dibromofluoroethane($C_2H_3FBr_2$)
VII
1.7
72.
HBFC-124B1
Bromodifluoroethane($C_2H_3F_2Br$)
VII
1.1
73.
HBFC-124B1
Bromofluoroethane(C_2H_4FBr)
VII
0.1
74.
Hexabromofluoropropane(C_3HFB_6)
VII
1.5
75.
Pentabromodifluoropropane($C_3HF_2Br_5$)
VII
1.9
76.
Tetrabromofluoropropane($C_3HF_3Br_4$)
VII
1.8
77.
Tribromotetrafluoropropane($C_3HF_4Br_3$)
VII
2.2
78.
Dibromopentafluoropropane($C_3HF_5Br_2$)
VII
2.0
79.
Bromohexafluoropropane(C_3HF_6Br)
VII
3.3
80.
Pentabromofluoropropane($C_3H_2FBr_5$)
VII
1.9
81.
Tetrabromodifluoropropane($C_3H_2F_2Br_4$)
VII
2.1
82.
Tribromotrifluoropropane($C_3H_2F_3Br_3$)
VII
5.6
- 83.

Dibromotetrafluoropropane(C3H2F4Br2)
VII
7.5
84.
Bromopentafluoropropane(C3H2F5Br)
VII
1.4
85.
Tetrabromofluoropropane(C3H3FBr4)
VII
1.9
86.
Tribromodifluoropropane(C3H3F2Br3)
VII
3.1
87.
Dibromotrifluoropropane(C3H3F3Br2)
VII
2.5
88.
Bromotetrafluoropropane(C3H3F4Br)
VII
4.4
89.
Tribromofluoropropane(C3H4FBr3)
VII
0.3
90.
Dibromodifluoropropane(C3H4F2Br2)
VII
1.0
91.
Bromotrifluoropropane(C3H4F3Br)
VII
0.8
92.
Dibromofluoropropane(C3H5FBr2)
VII
0.4
93.
Bromodifluoropropane(C3H5F2Br)
VII
0.8
94.
Bromofluoropropane(C3H6FBr)
VII
0.7
95.
Methyl bromide
Bromonethane(CH3Br)
VIII

0.6

95. []

[Inserted by S.O. 1561(E), dated 18-9-2007 (w.e.f. 18-9-2007).]

Bromochloromethane

CH₂BrCl

IX

0.12

II

[See rules 2(c), 3(1), 5(2), 9]

REGULATION ON PRODUCTION AND CONSUMPTION OF GROUP OF OZONE DEPLETING SUBSTANCES

Sl. No

Name of Group of Ozone Sub-stances

Year(s) relating to base level

Maximum allowable Production in a period of twelve months as percentage of calculated base level of Group as a whole

Maximum allowable consumption in a period of twelve months as percentage of calculated consumption of base years for Group as a whole

Date related to columns (4) and

(5)

Ban on creating capacities for production of Ozone Depleting Substances

Ban on creating new capacities to manufacture products made with or containing Ozone Depleting Substances

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

1(a)

II

1995-1997

[100]

[Substituted by S.O. 1561(E), dated 18-9-2007 (w.e.f. 18-9-2007).]

100

1-1-2002

Date on which these rules come into force

Date on which these rules come into force

(b)

II

1995-1997

[50]

[Substituted by S.O. 1561(E), dated 18-9-2007 (w.e.f. 18-9-2007).]

50

1-1-2005

-

-

(c)

II

1995-1997

0

0

1-1-2005

-

-

2(a)

IV

1998-2000

[15]

[Substituted by S.O. 1561(E), dated 18-9-2007 (w.e.f. 18-9-2007).]

15

1-1-2005

Date on which these rules come into force

Date on which these rules come into force

(b)

IV

1998-2000

0

0

1-1-2010

-

-

3(a)

V

1998-2000

[100]

[Substituted by S.O. 1561(E), dated 18-9-2007 (w.e.f. 18-9-2007).]

100

1-1-2003

Date on which these rules come into force

Date on which these rules come into force

(b)

V

1998-2000

[70]

[Substituted by S.O. 1561(E), dated 18-9-2007 (w.e.f. 18-9-2007).]

70

1-1-2005

-

-

(c)

V

1998-2000

[30]

[Substituted by S.O. 1561(E), dated 18-9-2007 (w.e.f. 18-9-2007).]

30

1-1-2010

-

-

(d)

V

1998-2000

0

0

1-1-2015

-

-

4(a)

VI

2015-2016*

115

100

1-1-2016

Date on which these rules come into force

-

(b)

VI

2015

0

0

1-1-2040

Date on which these rules come into force

-

5.

VII

-

0

0

1-1-2002

[Date on which these rules come into force]

-

6(a)

VIII

1995-1998

[100]

[Substituted by S.O. 1561(E), dated 18-9-2007 (w.e.f. 18-9-2007).]

100

Date on which these rules come into force

-

(b)

VIII

1995-1998

80

80

1-1-2005

-

-

(c)

VIII

1995-1998

0

0

1-1-2015

-

1-1-2015

7. []

[Inserted by S.O. 1561(E), dated 18-9-2007 (w.e.f. 18-9-2007)]

IX

-

-

0**

-

Date on which the Ozone Depleting Substances (Regulation and Control) Amendment Rules, 2007 came into force.

Date on which the Ozone Depleting Substances (Regulation and Control) Amendment Rules, 2007 came into force

III

[See rules 2(c), 3(2), (3), 5(3), 9(1) & (2)]

REGULATION ON PRODUCTION AND CONSUMPRION OF GROUP I AND GROUP III OZONE DEPLETING SUBSTANCES

Sl. No

Name of Group of Ozone Depleting Substances

Year(s) relating to base level

Maximum allowable Production

(MT) in a period of twelve months for Group as a whole

Maximum allowable consumption in a period of twelve months as percentage of calculated level of consumption in base yearsfor Groups as a whole

Date related to columns (4) and

(5)

Ban on creating capacities for production of Ozone Depleting Substances

Ban on creating new capacities to manufacture products made with or containing Ozone Depleting Substances

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

1.

I

III

1995-97

1998-2000

20,706

90%

31.12.2000

Date on which these rules come into force

Date on which these rules come into force

2.

I

III

1995-97

1998-2000

18,824

83%

31.12.2001

Date on which these rules come into force

Date on which these rules come into force

3.

I

III

1995-97

1998-2000

16,941

75%

31.12.2002

Date on which these rules come into force

Date on which these rules come into force

4.

I

III

1995-97

1998-2000

15,058

66%

31.12.2003

Date on which these rules come into force

Date on which these rules come into force

5.

I

III

1995-97

1998-2000

13,176

58%

31.12.2004

Date on which these rules come into force

Date on which these rules come into force

6.

I

III

1995-97

1998-2000

11,294

50%

31.12.2005

Date on which these rules come into force

Date on which these rules come into force

7.

I

III

1995-97

1998-2000

7,342

33%

31.12.2006

Date on which these rules come into force

Date on which these rules come into force

8.

I

III

1995-97

1998-2000

3,389

15%

31.12.2007

Date on which these rules come into force

Date on which these rules come into force

9.

I

III

1995-97

1998-2000

2,259

10%

31.12.2008

Date on which these rules come into force

Date on which these rules come into force

10.

I

III

1995-97

1998-2000

1,130

10%

31.12.2009

Date on which these rules come into force

Date on which these rules come into force

11.

I

III

1995-97

1998-2000

[*]

[Save for any Chlorofluorocarbon production/consumption that may be agreed by the Parties to meet essential uses for India]

[*]

[Save for any Chlorofluorocarbon production/consumption that may be agreed by the Parties to meet essential uses for India]

After 1-1-2010

Date on which these rules come into force

Date on which these rules come into force

IV

[See rules 6(1), 7, 8(1),(2), (3), (4) and (5), 9(3), 10(3)]

REGULATION ON CONSUMPTION OF OZONE DEPLETING SUBSTANCES ON END USE BASIS

S. No.

Name of Activities

Name of Group of Ozone Depleting Substances

Phase out Date*

- (1)
- (2)
- (3)
- (4)

1.

Manufacture of Aerosol products or pressurized dispensers (excluding metered dose inhalers for medicinal purpose).

Group I

1-1-2003

2.

Manufacture of Polyol for foam products

Group I

1-1-2003

3.

Manufacture of foam products including foam part of Domestic Refrigerator.

Group I

1-1-2003

4.

Manufacture of Fire Extinguishers or Fire Extinguishing Systems.

Group II

1-1-2001

5.

Manufacture of Mobile Air-Conditioners and charging at Automobile industry

Group I

1-1-2003

6.

Manufacture of other Refrigeration and Air-conditioning products (excluding compressors)

Group I

1-1-2003

7.

Manufacture of different products

Group I, III, IV & V

1-1-2010

8.

Servicing of fire extinguishers and fire extinguishing systems.

Group II

[1-1-2010]

[Except for essential use certified by the essential use panel.]

9.

Manufacture of Metered Dose inhalers for medicinal purposes.

Group I

1-1-2010

10.

Manufacture of different products

Group VI

1-1-2040

11.

Use of methyl bromide except pre-shipment
& quarantine

Group VII

1-1-2015

V

[See rule 2(b), 3(1), 6(1), 7, 8(1), (2),(5) & (6),11(1), (2), 12(1), 13(5)]

LIST OF AUTHORITIES, THEIR FUNCTIONS AND LAST DATE FOR REGISTRATION

Part I

FOR OZONE DEPLETING SUBSTANCES OTHER THAN GROUP VIII OF SCHEDULE I

S.No

Rule No.

Function

Name of Authority

Last date for Registration

Name of Appellate Authority

(1)

(2)

(3)

(4)

(5)

(6)

1.

3(1)

Registration of producers of Ozone Depleting Substances

An officer not below the rank of a Deputy Secretary in the Ministry of Environment and Forest

[Two years after commencement of the rules]

[Substituted by S.O. 1283(E), dated 31.12.2001 (w.e.f. 31.12.2001).]

[except for the enterprises producing ozone depleting substances listed in Group IV of Schedule I for feedstock use:

Provided that the last date for registration of the enterprises producing ozone depleting substances listed in Group VI in column (4) of Schedule I shall be on or before the 31st December, 2030.]

[Inserted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

Secretary, Ministry of Environment and Forests

2.

3,

4, 5,10(1)[***]

[Omitted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

Licence to import/export of products made with or containing Ozone Depleting Substances and Ozone Depleting Substances

Director General of Foreign Trade

-

-

3.

6(1)

Registration of traders/dealers/wholesalers/

sellers of Ozone Depleting Substances

(i.) An Officer of the particular Producer not below the rank of Manager, if the Ozone Depleting Substance has been produced in India.

(ii.) An officer of the particular Importer not below the rank of Manager, if the Ozone Depleting Substances has been imported.

[Two years after the commencement of these rules]

[Substituted by S.O. 1283(E), dated 31.12.2001 (w.e.f. 31.12.2001).]

[In case of substance listed under Group II, Group III and Group IV upto 31st December, 2009, in case of substances in Group VI upto 31st December,

2039 and in case of substances in Group VIII upto 31st December, 2014]

[Inserted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

An officer not below the rank of a Deputy Secretary in the Ministry of Environment and Forests

4.

8(1)

Registration of persons/enterprises engaged in activities specified in column (2) of Schedule-IV (whose capital investment is less than Rs.1 crore.)

Registration of persons engaged in activities in column (2) of Schedule IV. (whose capital investment is more than Rs.1 crore)

Officer-in-charge of the office Small Industries Services Institute in respective jurisdiction under Small Industries Development Organisation under the Ministry of Small Scale, Agro and Rural Industries.

An officer not below the rank of a Deputy Secretary in the Ministry of Environment and Forests

[Two years after the commencement of these rules]

[Substituted by S.O. 1283(E), dated 31.12.2001 (w.e.f. 31.12.2001).]

[In case of substance listed under Group I, Group II and Group III upto 31st December, 2006, in case of substances in Group IV upto 31st December, 2009 and Group VI upto 31st December, 2030.]

[Substituted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

An officer not below the rank of a Deputy Secretary in the Ministry of Environment and Forests.

Secretary, Ministry of Environment and Forests.

5.

11(1)

Registration of person having facilities to reclaim Ozone Depleting Substances

Officer-in-charge of the office of Small Industries Services Institute in respective jurisdiction under Small Industries Development Organisation under the Ministry of Small Scale, Agro and Rural Industries.

[***]

[Omitted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

An officer not below the rank of a Deputy Secretary in the Ministry of Environment and Forests.

6.

11(2)

Registration of persons having facilities to destroy Ozone Depleting Substances

Officer-in-charge of the Office of Small Industries Services Institute in respective jurisdiction under Small Industries Development Organisation under the Ministry of Small Scale, Agro and Rural Industries.

[***]

[Omitted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

An officer not below the rank of a Deputy Secretary in the Ministry of Environment and Forests.

7.

12

Registration of manufacturers, importers & exporters of compressors / (whose capital investment is less than Rs. 1 crore)

Registration of manufacturers, importers & exporters of compressors (whose capital investment is more than Rs.1 crore)

Officer-in-charge of the Office of Small Industries Services Institute in respective jurisdiction under Small Industries Development Organisation under the Ministry of Small Scale, Agro and Rural Industries.

An officer not below the rank of a Deputy Secretary in the Ministry of Environment and Forests.

One year after the commencement of these rules

One year after the commencement of these rules

An officer not below the rank of Deputy Secretary in the Ministry of Environment and Forests.

Secretary, Ministry of Environment and Forests.

Part II

FOR SCHEDULE I, GROUP VIII OZONE DEPLETING SUBSTANCE

Sl. No

Rule No.

Function

Name of Authority

Last date of Registration

Name of Appellate Authority

(1)

(2)

(3)

(4)

(5)

(6)

1.

3(1)

6(1)

8(1)

11(1)

Registration

As specified in the Insecticides Act, 1968 (46 of 1968)

As specified in the Insecticides Act, 1968 (46 of 1968)

As specified in the Insecticides Act, 1968 (46 of 1968)

VI

[See rules 4, 5(1)]

LIST OF COUNTRIES WHICH ARE PARTY TO THE 1987 MONTREAL PROTOCOL

Part I

LIST OF PARTIES CATEGORIZED AS OPERATING UNDER ARTICLE 5, PARAGRAPH 1 OF THE MONTREAL PROTOCOL

(1)

(2)

Sl. No.

Name of country

1.

Algeria

[1-A.]

[Inserted by S.O. 1561(E), dated 18-9-2007 (w.e.f. 18-9-2007).]

Afghanistan

1-B.

Albania

1-C.

Angola

2.

Antigua and Barbuda

3.

Argentina

3-A.

Armenia

4.

Bahamas

5.

Bahrain

6.

Bangladesh

7.

Barbados

8.

Belize

9.

Benin

9-A.

Bhutan

10.

Bolivia

11.

Bosnia and Herzegovina

12.

Botswana

13.

Brazil

14.

Brunei Darussalam

15.

Burkina Faso

16.

Burundi

16-A.

Cambodia

17.

Cameroon

17-A.

Cape Verde

18.

Central African Republic

19.

Chad

20.

Chile

21.

China

21-A.

Cook Islands

22.

Colombia

23.

Comoros

24.

Congo

25.

Congo, Democratic Republic of

26.

Costa Rica

27. []

[Substituted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

Cote d'Ivoire

28.

Croatia

29.

Cuba
30.
Cyprus
30-A.
Djibouti
31.
Dominica
32.
Dominican Republic
33.
Ecuador
34.
Egypt
35.
El Salvador
[35-A.]
[Inserted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]
Eritrea
36.
Ethiopia
37.
Fiji
38.
Gabon
39.
Gambia
40.
Georgia
41.
Ghana
42.
Grenada
43.
Guatemala
44.
Guinea
44-A.
GuineaBissau
45.
Guyana
45-A.
Haiti
46.
Honduras
47.
India
48.
Indonesia
49.
Iran, Islamic Republic of
50.

Jamaica

51.

Jordan

52.

Kenya

53.

Kiribati

53-A.

Kyrgyzstan

54.

Korea, Peoples Democratic Republic of

55.

KoreaRepublicof

56.

Kuwait

57.

Lao People?s Democratic Republic of

58.

Lebanon

59.

Lesotho

59-A.

Liberia

60.

Libyan Arab Jamahiriya

61.

Madagascar

62.

Malawi

63.

Malaysia

64.

Maldives

65.

Mali

[65-A.]

[Inserted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

Marshall Islands

[***]

[Omitted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

66.

Malta

67.

Mauritania

68.

Mauritius

69.

Mexico

69-A.

Micronesia

(Federated States of)

70.
Moldova
71.
Mongolia
72.
Morocco
73.
Mozambique
74.
Myanmar
75.
Namibia
75-A.
Nauru
76.
Nepal
77.
Nicaragua
78.
Niger
79.
Oman
80.
Nigeria
80-A.
Niue
81.
Pakistan
81-A.
Palau
82.
Panama
83.
Papua New Guinea
84.
Paraguay
85.
Peru
86.
Philippines
87.
Qatar
88.
Romania
[88-A.]
[Inserted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]
Rwanda
89.
Saint Kitts & Nevis
90.
Saint Lucia

- 91.
Saint Vincent & theGrenadines
- 92.
Samoa
- 92-A.
Sao Tome and Principe
- 93.
Saudi Arabia
- 94.
Senegal
- 94-A.
SerbiaandMontenegro
- 95.
Seychelles
- 95-A.
Sierra Leone
- 96.
Singapore
- 97.
Slovenia
- [***]
[Omitted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]
- 98.
Solomon Islands
- 98-A.
Somalia
- 99.
South Africa
- 100.
Sri Lanka
- 101.
Sudan
- 101-A.
Suriname
- 102.
Swaziland
- 103.
SyrianArabRepublic
- 104.
Tanzania, United Republic of
- 105.
Thailand
- 106.
TheFormer Yugoslav Republic of Macedonia
- 107.
Togo
- 107-A.
Tonga
- 108.
Trinidad and Tobago
- [***]

[Omitted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

109.

Tunisia

110.

Turkey

[110-A.]

[Inserted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

Turkmenistan

110-B.

Tuvalu

111.

Uganda

112.

United Arab Emirates

113.

Uruguay

113-A.

Vanuatu

114.

Venezuela

(BolivarianRepublicof)

115.

Yemen

116.

Viet Nam

[***]

[Omitted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

117.

Yugoslavia

118.

Zambia

119.

Zimbabwe

Part III

LIST OF PARTIES CATEGORIZED AS OPERATING UNDER ARTICLE 2 OF THE MONTREAL PROTOCOL

1.

Australia

2.

Austria

3.

Azerbaijan

4.

Belarus

5.

Belgium

[***]

[Omitted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

6.

BruneiDarussalam

7.

Bulgaria

8.

Canada

9.

CzechRepublic

10.

Denmark

11.

Equatorial Guinea

12.

Estonia

13.

Finland

14.

France

[***]

[Omitted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

15.

Georgia

16.

Germany

17.

Greece

18.

Hungary

19.

Iceland

20.

Ireland

21.

Israel

22.

Italy

23.

Japan

24.

Latvia

25.

Liechtenstein

26.

Lithuania

27.

Luxembourg

[27-A.Malta]

[Inserted by S.O. 1561(E), dated 18.9.2007 (w.e.f. 18.9.2007).]

28.

Monaco

29.

Netherlands

30.

New Zealand

31.

Norway

32.

Poland

33.

Portugal

34.

Russian Federation

35.

Slovakia

36.

Spain

36-A.

Slovenia

37.

Sweden

38.

Switzerland

39.

Tajikistan

40.

Turkmenistan

41.

Ukraine

42.

United Kingdom

43.

USA

44.

Uzbekistan

45.

European Community

VII

[See rule 10(1), (2)]

REGULATION ON IMPORT AND EXPORT PRODUCTS CONTAINING OZONE DEPLETING SUBSTANCES

Sl. No

Name of Product

Name of Group of Ozone Depleting Substances

Date Regulation on Imports becomes effective

Date Regulation on Exports becomes effective

(1)

(2)

(3)

(4)

(5)

1.

Automobile and truck air-conditioning units. (Whether incorporated in vehicle or not).

Group I

Six months after these rules come into force

Six months after these rules come into force

2.

Domestic and commercial refrigeration and air-conditioning/heat pump equipment e.g.

- * Refrigerators
- * Freezers
- * Dehumidifiers
- * Water Coolers
- * Ice machines
- * Air conditioning and heat pump units
- * Compressors

Group I,

Group VI

-do-

-do-

3.

Aerosol products, except medical aerosols

Group I

-do-

-do-

4.

Portable fire extinguishers/System Cylinder

Group II

-do-

-do-

5.

Insulation boards, panels and pipe covers

Group I

-do-

-do-

6.

Pre-polymers

Group I,

Group VI

-do-

-do-

Note. - 1. Sl. No. 2, column (2) products include insulating material of the product.

2. All products mentioned above are excluded from the purview of this Schedule when transported in Consignments of personal or household effects or in similar non-commercial situations normally exempted from customs attention.

VIII

(See rule 15)

EXEMPTION

(i)

Use of Methyl Bromide, the ozone depleting substance covered in Group VIII of Schedule I, in quarantine and pre-shipment applications.

(ii)

. Ozone depleting substance which are used in laboratory or for analytical purposes subject to following conditions:-

(a)

Laboratory uses include equipment calibration; use as extraction solvents, diluents, or carriers for chemical analysis; biochemical research; inert solvents for chemical reactions, as a carrier or laboratory chemical and other critical analytical and laboratory purposes.

(b)

Ozone depleting substances should have been manufactured to the following purities :-

CTC (reagent grade)

99.5

1, 1, 1-trichloroethane

99.0

CFC-11

99.5

CFC-13

99.5

CFC-12

99.5

CFC-113

99.5

CFC-114

99.5

Other w| Boiling P>20oC

99.5

Other w| Boiling P<20oC

99.0

(c)

. These pure ozone depleting substances can be subsequently mixed by manufacturers, agents, or distributors with other chemicals, as is customary for laboratory and analytical uses.

(d)

These high purity ozone depleting substance and mixtures containing ozone depleting substances shall be supplied only in re-closable containers or high pressure cylinders smaller than three litres or in 10 millilitre or smaller glass ampoules, marked clearly as ozone depleting substances, restricted to laboratory use and analytical purposes and specifying that used or surplus ozone depleting substances should be collected and recycled, if practical. The ozone depleting substances should be destroyed if recycling is not practical.

(iii)

Import, export, and production of Group IV, Schedule I ozone depleting substances is excluded from the definition of consumption if such imports and production meant to be used in manufacture of ozone depleting substances specified in Group I of Schedule I.

(iv)

Import and export of any recovered or reclaimed ozone depleting substances is excluded from the definition of consumption.

(v)

Sub-rule (1) of rule 10 shall not apply to non-commercial sale of products which have been used for at least one year.

(vi)

Any rule in public interest with specific approval of the Central Government.

(vii)

Use of Group II substances of Schedule I for essential critical application shall as Defence Air Craft, Battle tank and Aviation Industries to be certified by an essential use panel.

IX

[See rules 13(1), 13(6)]

Part I

PROCEDURE FOR REGISTRATION

1. Application for registration of producers of ozone depleting substances under sub-rule (1) of rule 3 shall be made in Form 9 of Schedule XI.

2. Application for registration of sellers of ozone depleting substances under sub-rule (1) of rule 6 shall be made in Form 10 of Schedule XI

3. Application for registration of persons under sub-rule (1) of rule 8 shall be made in Form 11 of Schedule XI.

4. Application for registration of persons reclaiming ozone depleting substances under sub-rule (1) of rule 11 shall be made in Form 14 of Schedule XI.

5. Application for registration of persons destroying ozone depleting substances under sub-rule (2) of rule 11 shall be

made in Form 14 of Schedule XI.

6. Application for registration of persons manufacturing, importing or exporting compressors shall be made in Form 13 of Schedule XI.

7. A Certificate of Registration shall be issued by the registering authority to those persons who have been registered in accordance with these rules.

8. The Certificate of Registration shall contain the following information: -

(a)

. Name of registering authority.

(b)

. Registration number.

(c)

. Information contained in application for registration (excluding enclosures).

(d)

. Signature and seal of registering authority.

Part II

CONDITIONS OF REGISTRATION [***]

[Omitted by S.O. 1561(E), dated 18-9-2007 (w.e.f. 18-9-2007)]

1. The "Certificate of Registration" shall be kept at the "Registered Office" and shall be produced at any reasonable time on reproduced at any reasonable time on request before an Officer of the concerned authority not below in rank to a Section Officer to the Government of India or, in respect of registration under sub-rule (1) of rule 6 an Assistant Manager in the concerned producing enterprise.

2. The registration shall not be done, and shall cease to be valid, if the person to be registered or registered is in violation of these rules.

3. Registration under sub-rule (1) of rule 6 shall also be subject to commercial decision of the authority mentioned in column (4) of Schedule V, excluding such registration in respect of ozone depleting substances specified in Group VIII of Schedule I.

[***]

[Omitted by S.O. 1561(E), dated 18-9-2007 (w.e.f. 18-9-2007).]

[***]

[Omitted by S.O. 1561(E), dated 18-9-2007 (w.e.f. 18-9-2007).]

X

[See rules 14(1), (2), (3), (4), (5), (6) & (7)]

Part I

A. RECORDS TO BE MAINTAINED

Records regarding production of ozone depleting substances

(1)

Dated records and related documents in respect of each producing plant, of -

(a)

The actual quantity of each ozone depleting substances produced;

(b)

The actual quantity of each ozone depleting substances used as feed stock; and

(c)

Information specified in 2(b) and 2(c) below. Records regarding sale and offer for sale of ozone depleting substances.

(2)

Dated records and related documents in respect of -

(a)

The actual quantity of each ozone depleting Substances purchased;

(b)

The actual quantity of each ozone depleting substances sold within India; the name and address of the recipient of the each shipment and the purpose for which ozone depleting substances was purchased by the recipient. These purpose to be maintained are :

- (i)
Manufacture of Aerosols
 - (ii)
Manufacture of foam products
 - (iii)
Manufacture of fire extinguishers and fire extinguishers and fire extinguishing systems
 - (iv)
Manufacture of Mobile Air-conditioners
 - (v)
Manufacture of other Refrigeration and Air-conditioning products.
 - (vi)
Solvents use
 - (vii)
Exempted use
 - (viii)
Selling
 - (ix)
Others (please specify).
- Records regarding exports of Ozone.

(3)
Dated records and related documents containing information in respect of each column of Form 3 or 4, as the case may be, of Schedule XI.

Records regarding imports of ozone depleting substances

(4)
. Dated records and related documents containing information in respect of each column of Form 5 or 6, as the case may be, of Schedule XI.

Record and related document of regarding manufacture import and export of compressor.

(5)
Dated records and related document containing information in respect of each column of Form 12 or 13, as the case may be, of Schedule XI.

Declaration signed by the recipient in Form 12 of Schedule XI.

B. RECORDS TO BE MAINTAINED

(1)
Report on production of ozone depleting substances as per Form 1 of Schedule XI.

(2)
Report on imports of ozone depleting substances as per Form 2 of Schedule XI.

(3)
Report on exports of ozone depleting substances as per Form 3 of Schedule XI.

(4)
Report on sales of ozone depleting substances as per Form 4 of Schedule XI.

(5)
Reports mentioned in Sr. No.1 to 3 above shall be submitted to the Ministry of Environment and Forests. Report mentioned in Sl. No. 4 above shall be submitted the registering authority specified in column (4) of Schedule V, who will submit complied version of the reports, duly countersigned will also be submitted by such authority to the Ministry of Environment & Forests in hard copy as well as in floppy on request.

Part II

A. RECORDS TO BE MAINTAINED

Records regarding purchase of ozone depleting substances for use in activities specified in column (2) of Schedule IV

(1)
Dated records of-

(a)

the actual quantity of each ozone depleting substances purchased from an Indian supplier and the name and address of the Indian supplier;

(b)

the actual quantity of each ozone depleting substances used separately for each plant and each activity.

B. REPORTS TO BE SUBMITTED

(1)

Report on purchase of ozone depleting substances as per Form 5 of Schedule XI.

(2)

These reports shall be submitted to the concerned registering authority specified in column (4) of Schedule V, who will submit compiled version of the report to the Ministry of Environment & Forests. Individual reports will also be submitted by such authority to the Ministry of Environment & Forests on request.

Part III

A. RECORDS TO BE MAINTAINED

Records regarding purchase of non-ozone depleting substances by beneficiary companies for use in manufacture of products

(1)

Dated records and related documents in respect of-

(1)

Actual quantity of each non-ozone depleting substances purchased and the name and address of supplier;

(2)

Actual quantity of each non-ozone depleting substances used in manufacturing operations separately for each plant and each manufacturing operation.

B. REPORTS TO BE SUBMITTED

(1)

Report on use of non-ozone depleting substances by beneficiary companies as per Form 6 of Schedule XI.

(2)

These reports shall be submitted to the concerned authority specified in column (4) of Schedule V, who will submit compiled version of the report to the Ministry of Environment & Forests. Individual reports will also be submitted by such authority to the Ministry of Environment & Forests on request.

Part IV

A. RECORDS TO BE MAINTAINED

Records regarding reclamation

(1)

Dated records and related documents in respect of-

(a)

the actual quantity of each ozone depleting substances recovered; the name and address of the individual or company from which the ozone depleting substances is recovered and the name and address, if different of the site at which the ozone depleting substances is reclaimed;

(b)

the actual quantity of each ozone depleting substances reclaimed.

B. REPORTS TO BE SUBMITTED

(1)

Report on reclamation of ozone depleting substances as per Form 7 of Schedule XI.

(2)

These reports shall be submitted to the Ministry of Environment & Forests through the concerned registering authority specified in column (4) of Schedule V.

Part V

A. RECORDS TO BE MAINTAINED

Records regarding destruction

(1)

Dated records of-

(a)

the actual quantity of each ozone depleting substances destroyed on the basis of destruction efficiency of the facility employed.

B. REPORTS TO BE SUBMITTED

(1)

Report on destruction of ozone depleting substances as per Form 7 of Schedule XI.

(2)

These reports shall be submitted to the Ministry of Environment & Forests through the concerned registering authority specified in column (4) of Schedule V.

Part VI

A. RECORDS TO BE MAINTAINED

Records regarding manufacture, import and export of compressor

(1)

Dated records and related documents containing information in respect of each column of Form 12 of Schedule XI.

B. REPORTS TO BE SUBMITTED

(1)

Report on manufacture, import, export and sale of compressor and use of refrigerants in compressors sold as per Form 12 of Schedule XI.

(2)

These reports shall be submitted to the concerned registering authority specified in column (4) of Schedule V, who will submit complied version of the report to the Ministry of Environment & Forests. Individual reports will also be submitted by such authority to the Ministry of Environment & Forests on request.

Part VII

PRODUCTION OF RECORDS

(1)

Records being maintained pursuant to requirements of rule 13 shall be available for inspection at any reasonable time on request by an officer of the registering authority specified in column (4) of Schedule V, not below in rank to a Section Officer to the Government of India, However, persons who are engaged in selling any locally produced ozone depleting substances, except ozone depleting substances specified in Group VIII of Schedule I, shall make records available by inspection at any reasonable time on request by an officer of the concerned producing enterprise not below in rank to Assistant Manager or on request by an officer of the Ministry of Environment & Forests not below in rank to a Section Officer.

XI

FORM 1 - Page 1

REPORT ON PRODUCTION OF OZONE DEPLETING SUBSTANCES

Frequency of report : Annually

Last date for submission of report : Within 60 days of end of the year

Name of company

Period of report : January?December 20

Name of Group of Ozone Depleting Substances

Name of Ozone Depleting Substances *1

Total Quantity produced for All uses

*2

Quantities produced for exempted uses withinIndia*3

Quantities produced for supply to countries listed in parts I and II of Schedule-VI

Quantity produced for feed stock withinIndia

Quantity produced for other exempted use withinIndia

Group I

CFCl₃(CFC-11)

CF₂Cl₂(CFC-12)

C₂F₄Cl₂(CFC-114)

C2F5Cl

(CFC-115)

TOTAL

Form 1 - Page 2

Name of Group of Ozone Depleting Substances

Name of Ozone Depleting Substances *1

Total Quantity produced for All uses *2

Quantities produced for exempted uses within India*3

Quantity produced for supply to countries listed in Parts I and II of Schedule VI

Quantity produced for feed stock within India

Quantity produced for other exempted use within India

Group II

CF2BrCl (Halon 1211)

CF3Br (Halon-1301)

C2F4Br2 (Halon-2402)

TOTAL

Group III

CF3Cl (CFC-13)

Total

Group IV

CCl4 (Carbon tetra-Chloride)

Group V

C2H3Cl3 (Methyl Chloroform i.e. 1,1,1-trichloroethane)

FORM 1 - Page 3

Name of Group of Ozone Depleting Substances

Name of Ozone Depleting Substances *1

Total Quantity produced for All uses *2

Quantities produced for exempted uses within India*3

Quantity produced for supply to countries listed in Parts I and II of Schedule VI

Quantity produced for feed stock within India

Quantity produced for other exempted use within India

Group II

CHFCI (HCFC-21)

CHF2CI

(HCFC-22)

CH2FCI

(HCFC-31)

C2HF3CI2 (HCFC-123)

C4HF4CI

(HCFC-124)

C2H2F3CI

(HCFC-133)

CH3CF2CI (HCFC-141b)

CH3CF2CI

(HCFC-142b)

C3HF5C2? (HCFC-225)

CF3CF2CHCI2 (HCFC-225ca)

CF2CICF2CHCIF (HCFC-225cb)

TOTAL

FORM 1 - Page 4

Name of Group of Ozone Depleting Substances

Name of Ozone Depleting Substances

[Please see Schedule I for complete list of ozone depleting substances.]

Total Quantity produced for All uses

[Total production should be given without any deductions. The Ministry of Environment & Forests would make the necessary deductions in accordance with the definition in rule 2.]

Quantities produced for exempted uses within India

[Please see rule 2(k) and give the total quantity used within India as feedstock and quantity exempted under rule 16 from local production.]

Quantity produced for supply to countries listed in Parts I and II of Schedule VI

Quantity produced for feed stock within India

Quantity produced for other exempted use within India

1

2

3

4

5

6

Group VII

HBFCs

Group VIII

Methyl Bromide (CH₃Br)

Total quantity of New Methyl-Bromide produced for Quarantine and Pre-shipment applications within India and for exports

Signature

*4withseal?????????????..

FORM 1 - Page 5

VERIFICATION

I.....S/o do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am submitting and verifying the information given above in my capacity as.....and that I am competent to do so.

Place.....

Date.....

Signature

[The above Form including the verification portion must be signed in case of an individual by the individual himself or a person duly authorized by him-in case of Hindu undivided family by the Karta in case of a partnership firm. by the managing partner. in case of a company. by a person duly authorized in that behalf by the Board of Directors. and in any other case by a person incharge of or responsible for the conduct of the business.]

with seal

FORM 2 - Page 1

DATA ON IMPORT OF OZONE DEPLETING SUBSTANCES

Frequency of report : Quarterly

Last date for submission of report : Within 30 days of end of the quarter.

Period of report:.....

Name of Company :.....

Name of ozone depleting substances

[One Form should be used for only one ozone depleting substance. Use separate form for each ozone depleting substance. Please see Schedule I for complete list of all ozone depleting substance.]

:.....

(In metric tonnes)

Sr. No.

Purchase order No. & date

Bill of Lading No. & date

Total Quantity imported all uses

Quantity of new ozone depleting substance imported to use as

2

3

New

Recovered

Reclaimed

Feedstock

Exempted

Uses

1

2

3

4

5

6

7

8

Total

Free on Board (FOB) value \$

Free on Board(FOB) Value Rs.

Import licence No. & date

Country from which imported

Name & address of seller

Port of shipment

Port of delivery

9

10

11

12

13

14

15

TOTAL

Signature 4.....

with seal

FORM 2 - Page 2

VERIFICATION

I.....S/o.....do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am making this application in my capacity as.....and that I am competent to make this application and verify it by virtue of.....A photo/attested copy of which is enclosed herewith.

Place.....

Date.....

Signature.....

[The above Form including the verification portion must be signed in case of an individual by the individual himself or a person duly authorized by him, in case of Hindu undivided family, by the Karta, in case of the partnership firm, by the managing partner., in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any case, by a person incharge of or responsible for the conduct of the business.]

with seal

FORM 3 - Page 1

REPORT ON EXPORTS OF OZONE DEPLETING SUBSTANCES

Frequency of report : Quarterly

Last date for submission of report : Within 30 days of end of the quarter

Period of reports :.....

Name of Company:.....

Name of ozone depleting substances :.....

(In metric tonnes)

Sr. No.

InvoiceNo. & date

Bill of Lading No. & date

Quantity exported for all uses

Quantity of new ozone depleting substance imported to use as

New*

2 Recovered & Reclaimed

Quarantine & Pre-shipment application

*3

Feedstock

Exempted uses

1

2

3

4

5

6

7

8

TOTAL

Free on Board (FOB) value \$

Free on Board(FOB) Value Rs.

Import licence No. & date

Country to which exported

Name & address of seller

Port of shipment

Port of delivery

9

10

11

12

13

14

15

TOTAL

Signature

with seal

FORM 3 - Page 2

VERIFICATION

I.....S/o.....do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am submitting and verifying the information given above in my capacity as.....and that I am competent to do so.

Place.....

Date.....

Signature

with seal

Notes. -

*1. One Form should be used for only one ozone depleting substances. Use separate form for each ozone depleting substances. Please see Schedule 1 for complete list of all ozone depleting substances

*2. "Recovery". - The collection and storage of ozone depleting substances from machinery, equipment vessels etc. during servicing or prior to disposal.

"Reclamation". - The reprocessing and upgrading of a recovered ozone depleting substances through such mechanism as filtering, drying, distillation and chemical treatment in order to restore the substance to specified standard of performance. It often involves processing "off side" at a central facility.

*3. For Methyl Bromide only.

*4. The above Form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him, in case of Hindu undivided family, by the Karta, in case of the partnership firm, by the managing partner., in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any case, by a person in charge of or responsible for the conduct of the business.

FORM 4 - Page 1

REPORT ON SALE OF OZONE DEPLETING SUBSTANCES

Frequency of report : Quarterly

Last date for submission of report : Within 30 days of end of the Quarter

Name of Company:.....

Period of report:.....

Part A

(In metric tonnes)

Sl. No.

Name of Ozone Depleting Substance

Quantity of ozone depleting substance

Quantity of Ozone Depleting Substances purchased locally

Name and address of Indian supplier from whom Ozone Depleting Substances was purchased locally

Produced

*1

*2

*3

Imported

Reclaimed

Exported

Total for each Ozone Depleting Substance

FORM 4 - Page 2

Part B

(In metric tonnes)

Sl. No.

Name of Ozone Depleting Substances

Purpose for which *4 Ozone Depleting Substance was sold to the buyer

Quantity of Ozone Depleting Substance sold to the buyer

Name & address of buyer

TOTAL

Signature.....

with seal

FORM 4 - Page 3

VERIFICATION

I.....S/o do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am submitting and verifying the information given above in my capacity as.....and that I am competent to do so.

Place.....

Date.....

Signature.....

with seal

Notes. -

*1. Full report to be submitted as per Form 2

*2. Full report to be submitted as per Form 7

*3. Full report to be submitted as per Form 3

*4 Purpose are: (i) Manufacture of aerosols (excluding metered dose inhalers for medical purposes).

(ii)

Manufacture of Foam products.

(iii)

Manufacture of Fire extinguishers & fire extinguishing systems.

(iv)

Manufacture of Mobile Air-conditioners.

(v)

Manufacture of other Refrigerations & Air-conditioning products (excluding compressors).

(vi)

Solvent used.

(vii)

Exempted use.

(viii)

Selling.

(ix)

Servicing of fire-extinguishers or fire extinguishing system.

(x)

Metered dose inhalers for medicinal purpose.

(xi)

Manufacture of Compressors.

(xii)

Others - specify

FORM 4 - Page 4

*5 The above Form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him, in case of Hindu undivided family, by the Karta, in case of the partnership firm, by the managing partner., in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any case, by a person incharge of or responsible for the conduct of the business.

*6 Use separate Form for separate ozone depleting substances.

FORM 5 - Page 1

REPORT ON PURCHASE OF OZONE DEPLETING SUBSTANCES ON END USE BASIS

Frequency of report : Annually

Last date for submission : Within 30 days of end of calender year.

Name of Company:..... Period of report : January -
December.....

Part A

(In metric tonnes)

Sr. No.

Name of Ozone Depleting Substance

Quantity of Ozone Depleting Substance

Quantity of Ozone Depleting Substances purchased locally

Name and address of Indian supplier from whom Ozone Depleting Substances was purchased locally

*1

*2

imported

Reclaimed

Total

FORM 5 - Page 2

Part B

(In metric tonnes)

Sr. No.

Name of Ozone Depleting Substances

Name & address of enterprise/firm Ozone Depleting Substances was used

3 Purpose for which Ozone Depleting Substance was used

Quantity of Ozone Depleting Substance used

TOTAL

Signature.....

with seal

VERIFICATION

I.....S/o.....do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am submitting and verifying the information given above in my capacity as.....and that I am competent to do so.

Place.....

Date.....

Signature.....

with seal

Notes. -

*1 Full report to be submitted as per Form 2.

*2 Full report to be submitted as per Form 7.

*3 Purpose are: (i) Manufacture of aerosols (excluding metered dose inhalers for medical purposes).

(ii)

Manufacture of Foam products.

(iii)

Manufacture of Fire extinguishers & fire extinguishing systems.

(iv)

Manufacture of Mobile Air-conditioners.

(v)

Manufacture of other Refrigerations & Air-conditioning products (excluding compressors).

(vi)

Solvent used.

(vii)

Exempted use.

(viii)

Selling.

(ix)

Servicing of fire extinguishers or fire extinguishing system.

(x)

Metered dose inhalers for medicinal purpose.

(xi)

Manufacture of-Compressors.

(xii)

Others - specify.

*4 The above Form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him, in case of Hindu undivided family, by the Karta, in case of the partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any case, by a person incharge of or responsible for the conduct of the business.

FORM 6 - Page 1

REPORT ON USE OF NON-OZONE DEPLETING SUBSTANCES BY BENEFICIARY COMPANIES*1

Frequency of report : Annually

Last date for submission : Within 60 days of end of calendar year

Name of Company:..... Period of report: Jan-Dec.....

(In metric tonnes)

Sl. No.

Address of Factories

Date of commencement of manufacturing operations with non-Ozone Depleting Substances

Name of Depleting Substances used prior to conversion (if applicable)

Quantity of Ozone Depleting Substance used in a period of 12 months prior to conversion (if applicable)

Purpose for which non-Ozone Depleting Substance is being used *2

Name of non-Ozone Depleting Substance being used

Quantity of non-Ozone Depleting Substance used during the period of report

Total

Signature.....

with seal

FORM 6 - Page 2

VERIFICATION

I S/o do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am submitting and verifying the information given above in my capacity as and that I am competent to do so.

Place.....

Date.....

Signature.....

with seal

Notes. -

*1 This report is to be submitted by all companies whose names have been notified under sub-rule 2 of rule 6 or sub-rule 3 of rule 14.

*2 Purpose are: (i) Manufacture of aerosols (excluding metered dose inhalers for medical purposes).

(ii)

Manufacture of Foam products.

(iii)

Manufacture of Fire extinguishers & fire extinguishing systems.

(iv)

Manufacture of Mobile air-conditioners

(v)

Manufacture of other Refrigerations & Air-conditioning products (excluding compressors).

(vi)

Solvent used.

(vii)

Exempted use.

(viii)

Servicing of fire extinguishers or fire extinguishing system.

(ix)

Manufacture of Compressors.

(x)

Others - specify.

*3 The above Form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.

FORM 7 - Page 1

REPORT ON RECLAMATION OZONE DEPLETING SUBSTANCES

Frequency of report : Annually

Last date for submission : Within 60 days of end of calendar year.

Name of Company:..... Period of report : January -
December.....

(In metric tonnes)

Sl. No.

Name of Ozone Depleting Substances

Quantity of *2 Ozone Depleting Substances recovered

Name & Address of company/site from which Ozone Depleting Substances was recovered

Quantity of Ozone Depleting Substances was reclaimed *3

Name & Address of site at which Ozone Depleting Substances was reclaimed

1

2

3

4

5

6

TOTAL

Signature.....

with Seal

FORM 7 - Page 2

VERIFICATION

I S/o do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am submitting and verifying the information given above in my capacity as and that I am competent to do so.

Place.....

Date.....

Signature.....

with seal

Notes. -

*1 Please see Schedule I for list of all ozone depleting substances.

*2 "Recovery" - The collection and storage of ozone depleting substances from machinery, equipment, containment vessels during servicing or prior to disposal.

*3 "Reclamation" - The reprocessing and upgrading or recovered ozone depleting substances through such mechanism as filtering drying, distillation and chemical treatment in order to restore the substance to a specified standard of performance. It often involves processing "off-site" at a central facility.

*4 The above Form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any

other case, by a person incharge of or responsible for the conduct of the business.

FORM 8

REPORT ON QUANTITY OF OZONE DEPLETING SUBSTANCES DESTROYED

Frequency of report : Annually

Last date for submission of report : Within 30 days of end of calendar year

Name of Company:.....

Period of report : January -

December.....

(In metric tonnes)

Name of Group of Ozone Depleting Substances

Name of Ozone Depleting Substances

Quantities Destroyed *1

Signature

[The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.]

with Seal

VERIFICATION

I S/o do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am submitting and verifying the information given above in my capacity as and that I am competent to do so.

Place.....

Date.....

Signature.....

with seal

Notes. -

*1 Quantity destroyed should be calculated on the basis of destruction efficiency of the facility employed.

*2 The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.

FORM 9 - Page 1

FORM FOR REFRIGERATION OF ENTERPRISES PRODUCING OZONE DEPLETING SUBSTANCES

(Sub-rule (1) of rule 3)

1. Name of enterprises:

2. Address of Registered office (including Tehsil, District, State):

3. Particulars of factories:

Sr. No.

Name *1 of Ozone Depleting Substances

Address of factory where Ozone Depleting Substances is produced (including Tehsil, District, State)

Date of incorporation or registration

Date of commencement of commercial production

1.

2.

3.

4.

4. Name of business house/group to which the enterprise belongs:

5. Please give name of Managing Director or Chief Executive:

FORM 9 - Page 2

6. Please enclose a copy each of the Annual Report, Audited Balance Sheet and Profit and Loss Account of the

enterprise for the last three years.

Signature *2.....

with Seal

VERIFICATION

I S/o do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am submitting and verifying the information given above in my capacity as and that I am competent to do so.

Place.....

Date.....

Signature *2.....

[The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.]

with seal

FORM 10 - Page 1

Form For Registration Of Enterprises Selling Ozone Depleting Substances

(Sub-rule (1) of rule 6)

1. Name of firm :

2. Address of registered office (including Tehsil District, State) :

3. Date of registration and the name of Act under which registered (a copy of such registration to to be attached) :

4. Particulars of sales outlet :

Sl. No.

Name of Ozone Depleting Substance

Address of sale outlets

Date of start of sale of Ozone Depleting Substance

Name & address of producer/importer of Ozone Depleting Substance from whom Ozone Depleting Substance was purchased during the past twelve months

FORM 10 - Page 2

5. Name of Proprietor or Chief Executive:

6. Please attach a copy of latest Income Tax

Assesment Order:

Signature of the applicant

with seal

Verification

I declare that the enterprise/firm mentioned in Serial. 1 above has not applied for registration under sub-rule (1) of rule 6 of the Ozone Depleting Substances (Regulation and Control) Rules, 2000 with any other registering authority.

I S/o do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am submitting and verifying the information given above in my capacity as and that I am competent to do so.

Place.....

Date.....

Signature *2.....

[The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.]

with seal

Notes:-

*1 Please see Schedule I for list of all ozone depleting substances.

*2 The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.

FORM 11 - Page 1

Form For Registration Of Enterprises Using Ozone Depleting Substances In Activities Specified In Column 2 Of Schedule Iv

(Sub-rule (1) of rule 8)

Part A

ACTIVITIES RELATING TO MANUFACTURE OF PRODUCTS USING OZONE DEPLETING SUBSTANCES

1. Name of the enterprise :

2. Address of registered office (including Tehsil, District, State) :

3. Particulars of factories :

Sr. No.

Address of factory where products using Ozone Depleting Substances are produced (including Tehsil, District, State)

Name of products being manufactured *1

Date of incorporation registration

Date of commencement of commercial production

1.

2.

3.

4.

4. Name of business house/group to which the enterprise belongs:

Schedule ??????????..?????.XI

5. Please give name of Managing or chief Executive.

Form

????????????????????...11

6. Please enclose a copy of the latest Annual Report, Audited Balance Sheet and Profit & Loss Account of the enterprise.

Page????????????????????..2

Signature *2.....

[The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.]

with seal

Verification

I declare that the enterprise/firm mentioned in Sl. No. 1 above has not applied for registration under sub-rule (1) of rule 6 of the Ozone Depleting Substances (Regulation and Control) Rules, 2000 with any other registering authority.

I S/o do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am submitting and verifying the information given above in my capacity as and that I am competent to do so.

Place.....

Date.....

Signature *2.....

[The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.]

with seal

Notes. -

*1 Products to include one of the following:-

(i)

Aerosols (excluding metered dose inhalers for medicinal purposes); (ii) Foam Products; (iii) Fire Extinguishers or fire extinguishing systems; (iv) Mobile Air Conditioners; (v) Other Refrigeration & Air conditioning products (excluding compressors); (vi) Products where ozone depleting substances are used as solvents; (vii) Metered Dose Inhalers for medicinal purpose.

*2 The above Form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.

Part 11 ? Page 2

Part B

Activities Relating To Servicing Of Fire Extinguishers Or Fire Extinguishing Systems

1.

Name of the enterprise/firm

:

2.

Address of Registered office

(including : Tehsil, District, State)

:

3.

Date of Registration and the name of Act under which registered. (A copy of registration to be attached)

:

4.

Servicing fire extinguishers

:

Yes/No

5.

Servicing fire extinguishing systems

:

Yes/No

6.

Address of servicing outlet

:

7.

Date of commencement of servicing activities

:

8.

Name of Proprietor/ Chief Executive Committee

:

9.

Please enclose a copy of the latest Annual Report, Audited Balance Sheet and Profit & Loss Account of the enterprise or Income Tax Assessment Order.

Signature *1.....

[The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.]

with seal

Verification

I declare that the enterprise/firm mentioned in Sl. 1 above has not applied for registration under sub-rule (1) of rule 6 of the Ozone Depleting Substances (Regulation and Control) Rules, 2000 with any other registering authority.

I S/o do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am submitting and verifying the information given above in my capacity as and that I am competent to do so.

Place.....

Date.....

Signature *1.....

[The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.]

with seal

Notes. -

*1 The above Form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.

FORM 12 - Page 1

Report On Manufacture, Import, Export And Sale Of Compressors

Frequency of report : Quarterly

Last date for submission of report : Within 30 days of end of the quarter

Name of Company:.....

Period of report : January -

December.....

Sl. No.

Size of Compressor

No. of compressors

Produced

Imported

Exported

1

2

3

4

5

TOTAL

No. of compressor sold in India

Name and address of Indian buyer

Name of refrigerant if compressor was charged at the premises of the company

Quantity of refrigerant used

6

7

8

9

TOTAL

Signature

with Seal

FORM 12 - Page 2

Verification

I S/o do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am submitting and verifying the information given above in my capacity as and that I am competent to do so.

Place.....

Date.....

Signature *1.....

[The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.]

with seal

Notes. -

*1. The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.

FORM 13 - Page 1

Form For Registration Of Enterprises Manufacturing, Importing Or Exporting Compressors

(See rule 12)

1. Name of the eneterprise/firm :

2. Address of Registered office (including Tehsil, District, State) :

3. Particulars of factories manufacturing Compressors (for manufacturers) :

Sr. No.

Address of factory where compressors are produced (including Tehsil, District, State)

Date of incorporation or registration

Date of commencement of commercial production

1

2

3

4

1.

2.

4. Particular regarding imports:

(for importers)

Sr. No.

Address of companies from whom importing

Date of start of imports

1

2

3

1.

2.

FORM 13 - Page 2

5. Particular of sales outlet (for exporters and/or tranders):

Sl. No.

Addressof sales outlets

Date of start of sales

Date of start of exports

1

2

3

4

1.

2.

6. Name of Business house/group to which the enterprises belongs:

7. Please give name of Managing Director or Chief Executive:

8. Please enclose a copy each of the latest Annual Report, Audited Balance Sheet and Profit & Loss Account or Income Tax Assessment Order of the enterprises/firm.

Signature *1.....

[The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.]

with seal

Verification

I declare that the enterprise/firm mentioned in Sl. 1 above has not applied for registration under sub-rule (1) of rule 6 of the Ozone Depleting Substances (Regulation and Control) Rules, 2000 with any other registering authority.

I S/o do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am submitting and verifying the information given above in my capacity as and that I am competent to do so.

Place.....

Date.....

Signature *1.....

[The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.]

with seal

FORM 13 - Page 3

Notes: -

*1. The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.

FORM 14

Form For Registration Of Enterprises Reclaiming/destroying Ozone Depleting Substances

(See rule 11)

1. Name of the enterprise:

2. Address of Registered office (including Tehsil, District, State):

3. Particulars of factories:

1.

Name of the enterprise:

2.

Address of Registered office

(including Tehsil, District, State):

3.

Particulars of factories:

Sl. No.

Name of Ozone Depleting Substance *3

Address of factory where Ozone Depleting Substances is being reclaimed/destroyed (including Tehsil, District, State)

Date of incorporation or registration

Date of commencement of commercial reclamation/destruction

1.

2.

3.

4.

4.

Name of business house/group which the enterprise belongs:

5.

Please give name of Managing Director or Chief Executive :

Schedule

??????XI

Form???????..14

Page

??????..?2

6.

Please enclose a copy each of the latest Annual Report, Audited Balance Sheet and Profit & Loss Account of the enterprise.

Signature of the applicant.....

with seal

Verification

I declare that the enterprise/firm mentioned in Sl. No. 1 above has not applied for registration under sub-rule (1) of rule 6 of the Ozone Depleting Substances (Regulation and Control) Rules, 2000 with any other registering authority.

I S/o do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am submitting and verifying the information given above in my capacity as and that I am competent to do so.

Place.....

Date.....

Signature *1.....

[The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.]

with seal

Notes. -

*1. The above form including the verification portion must be signed in case of an individual, by the individual himself or a person duly authorized by him: in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorized in that behalf by the Board of Directors and in any other case, by a person incharge of or responsible for the conduct of the business.

*2 Please use separate Form for reclamation and destruction.

*3 Please see Schedule I for list of all ozone depleting substances.

XII

(See rule 6(1), 7)

Part I

END-USE DECLARATION

1. Information regarding seller of ozone depleting substances:

Name of supplier: _____

Address: _____

2. Information regarding purchaser of ozone depleting substances

Name of recipient: _____

Address: _____

Fax: _____

Telephone No.: _____

3. Registration No.: _____

4. Name and address of Registering Authority:

5.

Name of Ozone Depleting Substance

Purpose* 1 for which Ozone Depleting Substance is purchased

Quantity of Ozone Depleting Substance purchased

Kg.

Kg.

Kg.

Kg.

Kg.

Kg.

6.

Has the purchaser ever been convicted of an offence under Indian law applicable in respect of ozone depleting substances?

Yes

No

Signature of the Purchaser of the Ozone Depleting Substances

With seal *2.

VERIFICATION

I S/o. do hereby solemnly verify that to the best of my knowledge and belief the information given above and the annexure and statements any accompanying it are correct and complete.

I further declare that I am making and verifying this declaration in my capacity asand that I am competent to do so.

Place.....

Date.....

Signature 3*.....

with seal

Note. -

*1. Purposes are: (i) Manufacture of aerosols (excluding metered dose inhalers for medicinal purposes).

(ii)

. Manufacture of Foam products.

(iii)

. Manufacture of Fire extinguishers & Fire extinguishing systems.

(iv)

. Manufacture of Mobile Air Conditioners.

(v)

. Manufacture of other Refrigerations & Air Conditioning products (excluding compressors).

(vi)

Solvents used.

(vii)

. Exempted use.

(viii)

. Selling.

(ix)

. Servicing of fire extinguishers of fire extinguishing systems (applicable for Group II ODS).

(x)

. Manufacture of metered dose inhalers for medicinal purposes.

(xi)

. Manufacture of compressors.

(xii)

Others - specify (excluding servicing).

*2. Use a separate Form for quantities of ozone depleting substances for which the Central Government has granted exemption from these rules.

*3. The above Form including the verification portion must be signed in case of an individual, by himself or a person duly authorised by him; in case of Hindu undivided family, by the Karta, in case of a partnership firm, by the managing partner, in case of a company, by a person duly authorised in that behalf by the Board of Directors, and in any other case, by a person incharge of or responsible for the conduct of the business.

Part II

A person purchasing ozone depleting substances will produce a copy of certificate of registration issued under sub-rule (1) of rule 8 before the person selling such ozone depleting substances along with the declaration specified in part I above. The copy of such certificate of registration should have been duly attested in case of a company by the Company Secretary or a full time Director of the company, in case of a partnership firm by the Managing partner and in any other case by Public Notary or a Gazetted Government Officer. The person selling ozone depleting substances shall verify particulars given in serial numbers 2, 3 and 4 of declaration specified in part I above with the corresponding particulars mentioned in the certificate of registration.

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Translation